



Notification Waiver Determination

National Dental Care - Sunshine Dental and Gisborne Dental, VIC

Acquisition	NDC HoldCo Pty Ltd (together with its subsidiaries, National Dental Care), through its wholly-owned subsidiary NDC Australia Pty Limited, applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets comprising two dental clinics in Victoria, Sunshine Dental Group and Gisborne Dental Group, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	5 October 2026

Parties to the Acquisition	The acquirer, National Dental Care, is a dental services organisation that operates a network of dental clinics that provide a range of general dentistry services. National Dental Care has dental clinics in all Australian states and territories, including Victoria. National Dental Care is majority owned by funds managed by Crescent Capital Partners, an Australian private equity firm. The targets, Sunshine Dental Group (59 Devonshire Road, Sunshine VIC) and Gisborne Dental Group (75 Hamilton Street, Gisborne VIC), both provide a range of general dentistry services. They form part of the Care Family Dental group, which comprises four dental clinics.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information, the ACCC considers the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between National Dental Care and Gisborne Dental in the supply of general dental services in the local area surrounding the Gisborne Dental clinic - there is a small horizontal overlap between National Dental Care and Sunshine Dental in the supply of general dental services in the local area surrounding the Sunshine Dental clinic, and the increase in share of supply arising from the Acquisition is expected be small

	c. there are alternative suppliers of general dental services in the local area surrounding both the Gisborne Dental and Sunshine Dental clinics. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act